

the detailing of the specific passages in the adduced evidence that the respondent regarded as destroying the novelty of claim 1.

For a further case where the board held that an unsubstantiated objection (here: mere reference to the notice of opposition) was not part of the appeal proceedings and the later substantiation therefore an amendment within the meaning of Art. 13 RPBA 2020, see T 2200/17. See also T 329/16.

l) New objection based on documents already on file – new arguments with factual elements

The board in T 482/18 disagreed with the finding reached in T 1914/12 that facts apparent from the patent documents on the case file (here: disclosure of "rod-shaped" in the application as filed and clarity of that term) were automatically at issue on appeal without having been expressly asserted. That position was at odds with the nature of judicial proceedings, such as those before the EPO boards of appeal, which were of the kind proper to an administrative court, since such proceedings involved deciding on a factually supported case and so depended on the assertion of facts. On the board's interpretation of "argument", see chapter V.A.4.2.2n).

The Legal Board in J 14/19 shared the view taken by the board in T 482/18. Observing that late-filed **submissions with factual elements** could be disregarded on the basis of Art. 114(2) EPC, it held that the simple fact that a party had already submitted a particular document on appeal did not mean that its entire content formed part of its appeal case. If it later relied on parts of that document other than those it had previously cited, that could amount to amending its appeal case. It further found that both a new combination of factual aspects and a new combination of factual and legal aspects were as a rule to be treated as an amendment to the appeal case. Such an amendment had to be distinguished from a mere **fine-tuning** of an existing line of argument (as in T 247/20; see the abstract in chapter V.A.4.2.2m); on the Legal Board's interpretation of "arguments" within the meaning of Art. 12(2) RPBA 2020, see also chapter V.A.4.2.2n)).

In T 2796/17 the board held that the inventive-step objection to the subject-matter of claim 1 of the new main request (initially filed with the reply as auxiliary request 1) which the appellant, based on two documents already on file (O2 und O3), had raised for the first time at the oral proceedings was new as it involved new facts and supporting evidence. The appellant had not previously attacked the patentability of claim 1 of this request (which was a combination of granted claims 1 and 2) or attacked granted claim 2. The objection to the new main request raised under Art. 56 EPC on the basis of O2 was thus a new submission. The board refused to admit it under Art. 13(1) and 25(1) RPBA 2020 and Art. 13 RPBA 2007 and Art. 25(3) RPBA 2020 on the grounds that its late filing was not understandable and had not been justified by the appellant and that the objection not only involved a complex new set of facts but also appeared *prima facie* irrelevant.

In T 187/18 the board held that a new combination of documents (already cited as part of the appellant's inventive-step attack, but in different combinations) was not a mere elaboration on a previously pleaded line of argument, but a change to the party's case.

The board then noted that, since the appellant had not identified any special reasons for the amendment to its case, the alleged *prima facie* relevance was not per se a consideration. Exercising its discretion under Art. 13(2) RPBA 2020, the board did not admit the new line of attack into the proceedings.

In T 1108/16 the respondent (patent proprietor) countered the inventive-step objection raised in the grounds of appeal only after receiving the communication under Art. 15(1) RPBA 2020, by submitting arguments as to why taking the cited prior-art documents together could not render the combination of features in claim 1 of its main request obvious. On the admissibility of these late-filed arguments, it contended that they had to be regarded as a natural elaboration on arguments in its reply, which already included a detailed analysis of the documents' content from which it directly followed that their teachings were essentially incompatible. The board, however, pointed out that, especially in adversarial opposition-appeal proceedings, it was essentially bound in its assessment of the factual and legal circumstances by the case made by each of the parties. Accordingly, it was not – and could not be – up to it to piece together itself from that case arguments a party had not expressly set out in defence of its patent or in support of the relief it sought. The new submissions in this case had to be regarded as an amendment.

In T 1707/16 it was only at the oral proceedings before the board that the appellant (opponent) – for the first time in either the opposition or the appeal proceedings – raised the objection that the feature at issue in claim 1 of the main request was not disclosed in figure 9, whereas it had previously argued that claim 1 contained an intermediate generalisation as the feature at issue was inextricably linked to the remaining features of the embodiment of figure 9. The appellant argued that the new objection was not an amendment to its appeal case, but rather a further development of the argument raised in the statement of grounds of appeal. The objection was to the same feature and under the same legal provision (Art. 123(2) EPC); the only difference was the stage of the assessment of compliance with Art. 123(2) EPC. The board, however, considered that the question of whether or not figure 9 unambiguously disclosed the feature in question completely changed the framework of the discussion relating to Art. 123(2) EPC and therefore regarded it as an amendment to the party's case.

m) Further developing arguments within the framework of the appeal case as submitted so far

In T 247/20 the board held that an amendment to a party's appeal case was a submission which was **not directed to** the requests, facts, objections, arguments and evidence relied on by the party in its statement of grounds of appeal or its reply. In other words, it went **beyond the framework established therein** (see also T 2988/18). In the case in hand, the arguments which the appellant (proprietor) had presented during the oral proceedings and to which respondent 2 objected were all aimed at illustrating, refining or further developing the arguments already presented with the grounds of appeal and at countering the arguments made by respondent 2 in this context. To the extent that additional passages or figures were referred to, this merely served that purpose. The board noted that no additional pieces of evidence had been introduced and that both the patent and D1

were very concise documents. In view of the above, the board held that the arguments at issue did not amount to an amendment of the appellant's appeal case. The board added that oral proceedings would serve no purpose if the parties were limited to presenting a mere repetition of the arguments put forward in writing. Instead, parties had to be allowed to refine their arguments, and even to build on them, provided they stayed within the framework of the arguments, and of course the evidence, submitted in a timely fashion in the written proceedings.

In T.1807/19 the board considered that the appellant's (opponent's) objection of lack of inventive step in view of D14 submitted one month before the oral proceedings before the board against the subject-matter of claim 1 of auxiliary request I (filed with the reply to the statement of grounds of appeal) did not constitute an amendment to the appellant's case as this objection remained within the framework of its case put forward on appeal. This objection was essentially the same as the inventive-step objection raised against claim 1 of the patent as maintained by the opposition division, as the appellant considered that there was still only one and the same distinguishing feature over D14. Consequently Art. 13(2) RPBA 2020 did not apply.

In T.684/18 too, the board took account of the appellant's arguments at the oral proceedings in so far as they were based on the written submissions it had filed after the summons. The board saw no reason to doubt that these arguments and the associated documents AM1 bis AM3 should be admitted; they were new arguments in support of the view already taken in the grounds of appeal that the materials disclosed in D2 had the claimed relationship in terms of mechanical strength. The board therefore considered that the appeal case had not been amended within the meaning of Art. 13 RPBA 2020.

n) Submissions concerning interpretation of the law

In T.2988/18 the board observed that there was no definition of the term "argument" in the RPBA 2020. In G.4/92 (OJ 1994, 149) the Enlarged Board had contrasted arguments with grounds or evidence and suggested that arguments "are reasons based on the facts and evidence which have already been put forward". In the board's view, this left open the question whether the type of argument made by the appellant, namely one which concerned the Enlarged Board's interpretation of Art. 123(2) EPC, also fell under the ambit of Art. 13(2) RPBA 2020. The board explained that arguments pertaining to interpretation of the law were generally accepted **at any stage of the proceedings** (with reference being made to sources of German and English law). This had been recognised in the explanatory remarks to the RPBA 2020, according to which submissions of a party which concerned the interpretation of the law were not an amendment (with reference to Supplementary publication 1, OJ 2020, 218). The board concurred with this view. It further noted that the appellant's argument was essentially that the principle set out in headnote 2 of G.1/93 (OJ 1994, 541) applied to the present case. This was precisely what was meant by the passage of the explanatory remarks to the RPBA 2020 referred to above, because an argument about the interpretation of the law would naturally concern how that interpretation applied to the facts of the case before the board.

In T.482/18 the board endorsed the view taken in T.1914/12 that the boards did not have any discretion when it came to admitting late-filed arguments based on facts already at issue in the proceedings, on the ground that Art.114(2) EPC 1973 (identical to Art.114(2) EPC) did not provide a basis for rejecting arguments. Nevertheless, it interpreted "argument" narrowly, treating the term as equivalent to submissions concerning interpretation of the law.

In J.14/19 the Legal Board, noting that late-filed submissions with factual elements could be disregarded under Art.114(2) EPC, held that "**arguments**" in Art.12(2) RPBA 2020 had to be interpreted in such a way that the meaning arrived at was in line with Art.114(2) EPC. Submissions of a party as to how the law should be interpreted did not have a factual dimension. Such **submissions concerning only interpretation of the law** were therefore not covered by the term "arguments" in Art.12(2) RPBA 2020, which instead referred to submissions with both factual and legal elements, of the kind as a rule made in relation to patentability issues. The Legal Board thus concluded that submissions concerning only interpretation of the law did not result in an amendment within the meaning of Art.12(4) RPBA 2020. Ultimately, this conclusion was confirmed by the explanatory remarks on Art.12(4) RPBA 2020 (CA/3/19, point 54 and related part of table in section VI, explanatory notes on Art.12(4) RPBA 2020), and it applied by analogy to Art.13(1) and (2) RPBA 2020 too. The Legal Board found that the submissions at issue in the case in hand, which the appellant had not filed until after the summons to oral proceedings, were (i) a reiteration of or elaboration on submissions already made in the grounds of appeal, (ii) submissions concerning only the interpretation of the EPC or (iii) submissions on German law directly linked to the statements on that law which the Legal Board had first made in its communication under Art.15(1) RPBA 2020. It thus took the submissions into account under Art.13(2) RPBA 2020.

o) Information supporting oral submissions

In T.247/20 the appellant (patent proprietor) filed slides containing figures illustrating its interpretation of relevant processes of the patent and D1 two months before the oral proceedings. The board did not regard these figures as evidence, or a change in the appellant's appeal case, but as supporting information for the appellant's oral presentation, albeit filed in advance of the oral proceedings. The board made it clear that they were thus part of the appeal proceedings and it had no discretion not to admit them.

p) Translation filed later

In T.1554/16 the appellant (opponent) had attached a translation of a Japanese patent specification to its grounds of appeal. Later, after receiving the summons to oral proceedings, it also filed a translation of the related patent application. For the board, the later translation was not an amendment to the appeal case within the meaning of Art.13(1) RPBA 2020, because a Japanese patent specification usually did not contain any teaching going beyond the original disclosure in the application and so the opponent's line of argument had already been clear from the translation of the specification. The disclosure in the translated application did not add anything new to the substance of that line of argument.

q) Late assertion of a breach of the right to be heard

In T. 545/18 the appellant argued for the first time at the oral proceedings that the fact that the inventive step was not discussed at the oral proceedings before the examining division (as noted in the statement of grounds of appeal), although Art. 56 EPC was one of the grounds for refusing the application, amounted to a violation of its right to be heard. The board considered this to be an amendment of the appellant's case, but held that there were exceptional circumstances within the meaning of Art. 13(2) RPBA 2020.

4.3. First level of the convergent approach – submissions in the grounds of appeal and the reply – Article 12(3) to (6) RPBA 2020

4.3.1 Principles

According to established case law the appeal proceedings should normally be based on the facts, evidence and requests which led to the decision under appeal (see e.g. J. 12/18, referring to Case Law of the Boards of Appeal, 9th ed. 2019, V.A.4.11.1). This principle is reflected in Art. 12(2) RPBA 2020, which states that, in view of the primary object of the appeal proceedings to review the decision under appeal in a judicial manner, a party's appeal case must be directed to the requests, facts, objections, arguments and evidence on which the decision under appeal was based.

Art. 12(4) RPBA 2020 implements the first level of the convergent approach (see CA/3/19, section VI, explanatory remarks on Art. 12(4) RPBA 2020, supplementary publication 2, OJ 2020). According to Art. 12(4), first sentence, RPBA 2020, parts of a party's appeal case which do not meet the requirements in Art. 12(2) RPBA 2020 are in general regarded as an amendment. It is not an "amendment", however, if the party demonstrates that the parts not meeting those requirements were admissibly raised and maintained in the proceedings leading to the decision under appeal. For decisions on the issue of what is considered an amendment under Art. 12(4) RPBA 2020, see chapter V.A.4.2.1 above. Any amendment may be admitted only at the discretion of the board.

The requirement that the statement of grounds of appeal and the reply thereto should contain the party's complete case is laid down in Art. 12(3) RPBA 2020 (expressed by substantially identical wording to Art. 12(2) RPBA 2007, as noted in T. 1533/15). Under Art. 12(5) RPBA 2020, the board has discretion not to admit any part of a submission by a party which does not meet the requirements in Art. 12(3) RPBA 2020 (see chapter V.A.4.3.5c) "Discretion under Art. 12(5) RPBA 2020" below).

Art. 12(4) RPBA 2007 has been reworded as Art. 12(6), first and second sentences, RPBA 2020 (as noted in e.g. T. 101/17 for the second sentence). Art. 12(6), first sentence, RPBA 2020 concerns the admittance of submissions which were not admitted in the proceedings at first instance (see chapter V.A.4.3.6 below). Art. 12(6), second sentence, RPBA 2020 relates to submissions which could and should have been submitted during the proceedings at first instance, or were no longer maintained during those proceedings, thereby preventing the department of first instance from taking a decision on them (see chapter V.A.4.3.7 below). According to the explanatory remarks in CA/3/19 on